Annex B

Format for providing public comments to DIFCA on Consultation paper No.1 of 2025
Proposed DIFC Law Amendment Law No. 1 of 2025

Note 1: DIFCA reserves the right to publish, including on its website, any comments you provide. However, if you wish to remain anonymous, you must expressly request at the time of making comments that this should be the case.

Note 2: The column titled 'comments on proposed policy' relates to the policy explained in the Consultation Paper ("CP"). The column titled 'comments on proposed legislation' refers to the draft legislation reflecting the proposed policy.

Note 3: It is possible that you may not have any comments, either on the proposed policy or legislation, or may have comments on one and not the other. You may leave a blank column if you either agree to the proposed position, or you have no concerns relating it.

Note 4: If there are any ambiguities relating to the proposed policy or legislation, you may raise those in your comments.

Name of individual / entity providing comments:	

No.	Comments on proposed policy	Comments on proposed legislation
Part A – Proposed Amendments to the Data Protection Law		
Q1: Do you agree that the Article 6(3) Amendments clarify the scope of extra-territoriality of the DPL, including with regards to stable arrangements? If not, please provide details.		
Q2: Do you agree with the approach proposed in Article 28(2)(c)? If not, please provide detailed reasons		
Q3: Do the amendments to Article 28(2) adequately assist in mitigating risks of harm to individuals whose Personal Data is processed by Requesting Authorities? If not, please provide detailed reasons		

No	Comments on proposed policy	Comments on proposed legislation
Q4: Do you have any concerns regarding the practical implementation of Article 28(2)? If so, please provide details		
Q5. Do you consider that any other approaches for understanding and assessing the availability of legal or other forms of redress in an importing jurisdiction are appropriate? Please provide detailed responses.		
Q6. Do you agree that a PRA is appropriate in a jurisdiction such as the DIFC? If not, please provide details. You may wish to comment on: **a) the positive or negative impact on Controllers or Processors of adding a PRA to the DPL (i.e., monetary, resources, etc); or** **b) the positive or negative impact on the Courts with respect to the types of lawsuits it may encourage (i.e., legitimate vs frivolous).**		
Q7. Do you think any other rights and redress mechanisms would be more desirable for either Data Subjects or Controllers or Processors?		
Q8. Do you have any other comments in relation to the proposed amendments?		
Part B – Proposed Amendments to the Law of Security		
Q9: Do you have any comments or other suggestions in relation to the Proposed Law? If so, what are they and how should they be addressed?		

No	Comments on proposed policy	Comments on proposed legislation
Part C – Proposed Amendments to the Insolvency Law		
Q10. Do you have any comments on the proposed revision to the definition of Security Right in the Insolvency Law? If so, please provide details.		
Part D – Proposed Amendments to the Employment Law		
Q11: Do you have any comments on the proposed clarification to Article 66(7)(c)(ii) of the Employment Law? If so, please provide details.		
Miscellaneous or general comments		